

METRON (PTY) LTD

Stratus Weather | Lightning Detection and Alerting

Trial Period: Terms and Conditions

Lightning Detection and Alerting Unit | Prepared for Glencore Wonderkop

Date: [DATE] Quotation reference: [QUOTATION REF] Document reference: [DOC REF]

This document sets out the terms on which Metron (Pty) Ltd ("Metron") will make a lightning detection and alerting unit available to Glencore Wonderkop ("the Client") for a trial period, so that the Client can see the unit working in the context of its own site setup before committing to the full quotation.

Summary

Trial length	Eight (8) weeks from the Commissioning Date
Billed for the trial	Installation and travel costs only
Trial scope	Basic administration panel and dashboard, alerting to a limited group of recipients
Decision window	Two (2) weeks after the trial ends
If the Client continues	Quotation [QUOTATION REF] applies, with no further site visit or installation charge
Payable on continuation	Administration panel, Stratus dashboard, and alerting for up to 250 recipients
If there is no response	Metron removes the unit

The summary is for convenience. The numbered clauses below govern.

1. Purpose and scope

- 1.1 These terms govern an eight (8) week trial of the lightning detection and alerting unit installed at the Client's Wonderkop site.
- 1.2 The purpose of the trial is evaluation. It allows the Client to observe the unit operating within its own site arrangements, reporting to its own nominated people, before accepting the full quotation.
- 1.3 These terms apply to the trial only. If the Client continues after the trial, quotation [QUOTATION REF] governs the ongoing relationship, as adjusted by clause 6.
- 1.4 Where these terms and the quotation differ in respect of the trial, these terms prevail.

2. What is supplied for the trial

- 2.1 One lightning detection unit, installed, commissioned and configured on site by Metron.
- 2.2 A basic administration panel for the unit, giving the Client visibility of unit status and alert history.
- 2.3 A basic dashboard view of detected activity.
- 2.4 Alerting by SMS to a limited group of [NUMBER] recipients nominated by the Client in writing.
- 2.5 The detection and alerting path used during the trial is the same one that would run in production. The trial is smaller in scope, not reduced in capability: the difference is the number of recipients and the extent of the panel and dashboard, not the quality of detection.

3. Trial period

- 3.1 The trial runs for eight (8) weeks, being fifty six (56) calendar days, beginning on the date the unit is commissioned and confirmed to be running on site (the "Commissioning Date").
- 3.2 The Commissioning Date will be recorded in writing by both parties on completion of installation.
- 3.3 The trial ends eight (8) weeks after the Commissioning Date (the "Trial End Date").

3.4 The unit continues to operate normally, at no additional charge, from the Trial End Date until the Decision Date in clause 5.

4. What the Client pays during the trial

4.1 The Client is billed only for the installation and travel costs associated with getting the unit on site and running, being [AMOUNT] excluding VAT.

4.2 No license, subscription, monitoring or alerting fees are charged for the trial period itself.

4.3 The installation and travel costs are payable whether or not the Client continues after the trial. They cover work performed and travel already undertaken, and are not a deposit against future fees.

4.4 These costs are invoiced on completion of commissioning and are payable within [30] days of invoice date.

4.5 SMS gateway costs incurred in delivering alerts during the trial are [BORNE BY METRON / RECHARGED AT COST].

5. Decision window after the trial

5.1 The Client has two (2) weeks, being fourteen (14) calendar days from the Trial End Date (the "Decision Date"), to confirm in writing whether it wishes to continue.

5.2 Continuing means written acceptance of the final quotation. An expression of interest without acceptance of the quotation is not continuation for the purposes of these terms.

5.3 If Metron has received no response, or no acceptance of the final quotation, by the Decision Date, Metron will remove the unit in accordance with clause 7.

5.4 The Decision Date may be extended by written agreement between the parties. Any extension will state the new date.

6. If the Client continues

6.1 Quotation [QUOTATION REF] applies from the Decision Date, adjusted as set out in this clause.

6.2 No further site visit or installation charge applies. The unit remains in place and continues running as normal, so the site visit and installation already carried out and paid for under clause 4 is not repeated or re-billed.

6.3 From the Decision Date the Client pays for the administration panel, the Stratus dashboard, and alerting for up to 250 recipients, at the rates in the quotation.

6.4 Operation is technically unchanged from the trial. The change is commercial and one of scale: the recipient list is expanded to the contracted 250 recipients, and the full administration panel and dashboard are enabled in place of the basic versions used during the trial.

6.5 There is no interruption to detection or alerting on continuation. The unit does not need to be reinstalled, recommissioned or recalibrated.

7. If the Client does not continue

7.1 Metron will remove the unit within [10] working days of the Decision Date, at a time arranged with the Client.

7.2 The Client will grant Metron reasonable access to the installation position for the purpose of removal.

7.3 Detection and alerting stop when the unit is removed. The Client must not rely on the system, or on any alert from it, after removal.

7.4 No amounts beyond those in clause 4 become payable because the Client chooses not to continue.

8. Client responsibilities

- 8.1 To provide safe access to the site and to the installation position, including any induction, permit or escort its procedures require.
- 8.2 To agree a suitable mounting position with Metron before installation, having regard to the unit's need for a clear position away from sources of electrical interference.
- 8.3 To provide power and network connectivity at the installation position as specified by Metron.
- 8.4 To nominate the trial recipients in writing and to keep their contact numbers current. Metron cannot deliver an alert to an incorrect or disconnected number.
- 8.5 Not to move, modify, open or otherwise interfere with the unit during the trial, and to notify Metron promptly of any damage, fault or suspected fault.

9. Ownership and risk

- 9.1 The unit and all equipment supplied with it remain the property of Metron throughout the trial, and afterwards unless ownership passes under a separate written agreement. The trial is not a sale, lease or hire purchase.
- 9.2 From installation until removal, the Client is responsible for loss of or damage to the unit caused by site activities, excluding fair wear and tear and excluding any defect or failure in the equipment itself.
- 9.3 Metron bears the cost of repairing or replacing the unit where it fails for reasons not caused by the Client, and will do so as promptly as is reasonably practicable.

10. Data

- 10.1 Detection records and unit telemetry are processed and stored on Metron's platform to operate the system and support the Client. The Client may request a copy of the detection data recorded at its site during the trial.
- 10.2 Recipient names and contact numbers are used only to deliver alerts, and are not shared with any third party other than the SMS gateway that carries the message.

11. Nature of the system and its limits

- 11.1 The system is a decision-support tool. It detects and reports lightning activity. It does not prevent lightning, and it cannot guarantee that every discharge near the site is detected, or that every detection is correctly classified or correctly ranged.
- 11.2 Alert delivery depends on services outside Metron's control, including mobile network availability, the SMS gateway, mains power and site connectivity. Metron cannot warrant the delivery or the delivery time of any individual alert.
- 11.3 The Client remains responsible for its own lightning safety procedures and for its stop-work and resume-work decisions. The system supplements those procedures and does not replace them.

During the trial, alerts reach only the limited group of recipients nominated under clause 2.4. The trial is not site-wide alerting coverage, and site procedures should continue on the basis that most personnel will not receive an alert directly.

- 11.4 To the fullest extent permitted by law, and except for death or personal injury caused by Metron's negligence, Metron's liability arising from the trial is limited to the amounts paid by the Client under clause 4.

12. Confidentiality

- 12.1 Each party will keep the commercial terms of the quotation confidential, and will not disclose information marked or obviously confidential except to personnel and advisers who need it. This does not apply to information that is public, already lawfully held, or required to be disclosed by law.

13. Ending the trial early

13.1 Either party may end the trial before the Trial End Date on [7] days written notice. The amounts in clause 4 remain payable in full, and the unit is removed in accordance with clause 7.

14. General

14.1 These terms, together with quotation [QUOTATION REF], are the whole agreement for the trial. Any variation must be in writing and agreed by both parties, and neither party may transfer its rights or obligations without the written consent of the other.

14.2 These terms are governed by the law of the Republic of South Africa.

14.3 Written acceptance of these terms by the Client, by email or otherwise, is sufficient for the trial to proceed.

Prepared by Metron (Pty) Ltd. Questions about these terms may be directed to [CONTACT NAME], [CONTACT EMAIL], [CONTACT NUMBER].

Fields to complete before issue: [DATE]; [QUOTATION REF]; [DOC REF]; [NUMBER]; [AMOUNT]; [30]; [BORNE BY METRON / RECHARGED AT COST]; [10]; [7]; [CONTACT NAME]; [CONTACT EMAIL]; [CONTACT NUMBER]